SMALLFELL (PVT) LIMITED

And

SIMBARASHE PFUMOJENA

And

MUFUDZI MUSHANINGA

And

ELIS TAPIWA GAMBAHAYA

Versus

INNOCENT CHAGONDA N.O

And

BB MUGABE INVESTMENTS (PVT) LIMITED

And

MIRATES INVESTMENTS (PVT) LIMITED

HIGH COURT OF ZIMBABWE

CHIRAWU-MUGOMBA J

Harare, 13, 20, 21 January 2026

T.L MAPURANGA, for the applicants

T. W. NYAMAKURA, for the 2nd respondent

T. GONZI, for the 3rd respondent

COMPOSITE COURT APPLICATION FOR THE SETTING ASIDE AND REGISTRATION OF AN ARBITRAL AWARD

CHIRAWU-MUGOMBA J:

In, *Alliance Insurance v Imperial Plastics (Private) Limited & Anor* SC 30 – 17 MALABA DCJ (as he then was) posed an important question with reference to applications for setting aside an arbitral award on public policy considerations as follows.

> 'These remarks ought to guide the Court in determining whether the award by the first respondent is contrary to public policy. The question that should be in the mind of a Judge who is faced with this ground for setting aside an arbitral award is that, in light of all the submissions and evidence adduced before the arbitrator, is it fathomable that he would have come up with

> such a conclusion. If the answer is in the affirmative, there is no basis upon which to set aside the award'.

I reflected on this *dicta* in this matter was placed before me as a composite court application for the setting aside and registration of an arbitral award in terms of Articles 34 and 35 of the Model Law (First Schedule) to the Arbitration Act [Chapter *7:15],* " the act". For the sake of convenience, I will maintain the citations as in the main application. At the hearing, Mr *Gonzi* indicated that he was appearing merely as a watching brief for the third respondent. Let me also hasten to add that although the applicants had raised a preliminary issue on the propriety of the filling of the counter court application for the registration of the arbitral award, this was abandoned at the hearing. In the main, the applicants seek that the arbitral award of the 13th of December 2024 be set aside and in the counter application, the second respondent seeks that it be registered. Let me also add that the understanding at the hearing was that should the application be granted then the award will fall away and should it be dismissed, the award will be registered.

The parties to the arbitration are as follows. BB Mugabe Investments (pvt) Limited is the claimant. Smallfell (pvt) Limited is the second respondent. Mirates Investments (pvt) Limited is the second respondent. Simbarashe Pfumojena is the third respondent, Mufudzi Musahninga is the fourth respondent and Ellis Tapiwa Gambaya is the fifth respondent. For the sake of convenience, I will maintain these citations for purposes of summarising the arbitration proceedings.

Although the applicants gave a lengthy background on the dispute and how it ended up at arbitration, I will deal firstly with the summary of the dispute as presented before the arbitrator. It is as follows. The dispute involves two companies that sold their entire shareholding in a hospital business and one is refusing to transfer shares despite receiving the purchase price. The claimant entered into an agreement of sale with the first and second respondents. The first and second respondents as holders of 50% each of the authorised and issued share capital in a company called Borrowdale Critical Care (pvt) Limited (BCC) sold their 50% shareholding for USD 175 000 each to the claimant. The first and second respondents were required to pay all taxes on the disposal of the share capital and upon full payment the claimant was immediately required to take over the running of the company and the said respondents were required to take steps to transfer their shareholding accordingly. The shares were paid for in full through one Dr Bandason despite some mishaps. Of the USD 175 000 paid to the first respondent, a sum of USD 5000 was retained for payment of capital gains tax. Despite confirmation of the agreement and confirmation of receipt of funds, the first and second respondents declined to attend to the statutory processes for the

transfer of the shareholding to the claimant who proceeded to issue a notice of breach and demanded specific performance. The second respondent on the other hand distanced itself from the conduct of the first respondent and issued a letter that is akin to a consent to judgment. It therefore opted not to participate in the arbitration process having confirmed the sale and its readiness to comply with the transfer of shares. The claim was therefore based on specific performance of a contract of sale. As for the third to the fifth respondents, they were obliged to resign as directors upon receipt of the purchase price. They still purport to be directors. In the alternative, the claimant claimed damages in the sum of USD 175 000 in the event that specific performance is not possible. The claimant upon payment of the purchase price immediately took over the running of the company and has effected improvements thereto. In addition to the purchase price, damages for loss of business and lost investment amounting to USD 10 319 819.25 were also sought.

The claim therefore before the arbitrator was as follows:-

a. The first respondent be ordered to attend to all statutory processes in order to transfer the shares held in BCC within fourteen days of the granting of an order.

b. That the third to fifth respondents be ordered to tender their resignations as directors of the company within two days of handing down of the arbitral award.

c. In the event that the third to the fifth fail or refuse to tender their resignations as directors of the company, the Registrar of Companies be and is hereby authorised and empowered to delete their names from the register of directors of BCC (Form C.R 6) and substitute those with names of directors appointed by the claimant.

d. The 1st, 3rd, 4th and 5th respondents jointly and severally, the one paying the other to be absolved, pay the claimant's costs on a legal practitioners and client scale.

ALTERNATIVELY:

a. That the first respondent be ordered to pay to the claimant damages for breach of contract in the sum of USD 10, 319, 25 broken down as USD 99 819.25 for loss of capital investment and USD 10 220. 000 for loss of business.

b. That the first respondent pay to the claimant the sum of USD 175 000 being damages for breach of contract being 50% share of the purchase price paid by the claimant for 50% of the shareholding in BCC.

c. The first respondent pays costs on a legal practitioners and client scale.

In their defence, the first, third, fourth and fifth respondents (the respondents) took issue with the non- citation of critical parties and postulated that the arbitrator may have to hear *viva voce* evidence. Further that two Doctors acted unlawfully and fraudulently by failing to disclose that they were part of the consortium of directors that used the claimant as a front to emasculate the first respondent out of BCC on the basis of a price that was less than the agreed sum of USD 500 000. They proceeded to give a lengthy background of the relationship between the parties and how BCC came about. Critical to note is the allegations that Drs Bandason and Mugano did not disclose their interests and this induced the first respondent into acceding to its shareholding being valued at USD 175 000. Had the interest been disclosed, the first respondent would not have sold its shareholding for a low price. It was alleged that the fraudulent nature of Dr Bandason's conduct was revealed through the signing of accounts for BCC by him. The USD 170 000 paid for the shares fell short of the USD 175 000 that was due. Payment was through a bank transfer from Dr Bandason in circumstances where he had claimed that he had no connection with the claimant. The only mode of payment as per the agreement was that it should be in cash comprising of one - hundred- dollar United States bills post 2006 series to the exclusion of any other method. The claimant did not comply with this requirement. The claimant cannot seek specific performance when the full purchase price has not been paid. They questioned the involvement of Dr Bandason in the payment of the purchase price. The respondents also counter claimed on the basis that the claimant acting in cahoots with Drs Bandason, Mugabe and Mugano financially prejudiced them in the sum of USD 250 000 payable as hard cash. Alternatively that the claimant together with the named Doctors should pay the sum of USD80 000 to the first respondent. Damages in the sum of USD 1, 157, 000 were also sought plus USD 14, 625 calculated at USD 1, 125 per month for thirteen months. Further amounts were sought relating to monthly salaries for two doctors as well as amounts for outstanding monthly leave days. Another rung sought was that of potential earnings. The legal question put before the arbitrator by the respondents was whether or not there is a valid contract between the claimant and the respondents considering the fraud perpetrated by claimant and its agents as well as the second respondent and its agents. The respondents prayed for the dismissal of the claimant's claim and also payment of the various amounts as outlined in this summary.

After taking into account all documents filed and hearing submissions, the first respondent made the following award.

1. The respondent be and is hereby ordered to attend to all statutory processes in order to effect transfer of its shares held in BCC to the claimant within 14 days of the granting of this order and in particular shall:

   1.1 Appoint a representative to act on its behalf and to appear before the Zimbabwe Revenue Authority (ZIMRA) and to attend to an interview for purposes of enabling ZIMRA to assess any capital gains tax that may be payable by the 1st respondent.

   1.2 Sign any transfer form necessary to give effect to the transfer of the 50% shares held by it in the company to the claimant.

   1.3 Procure the resignation of Messrs Simbarashe Pfumojena, Mufudzi Mushaninga. Elias Tapuwa Gambaya as directors of BCC.

2. In the event that the first respondent fails or refuses to sign any necessary documents to give effect to the transfer or to attend a ZIMRA interview, the Sheriff or his/her lawful Deputy shall be empowered to sign any necessary document on behalf of the first respondent and to appoint an appropriate person in the employ of the company to attend to and deal with any issue that ZIMRA may want resolved.

3. The first respondent shall pay any capital gains tax that may be assessed by ZIMRA as due and payable to it.

4. In the event that the first respondent fails to procure the resignation of Messrs Simbarashe Pfumojena, Mufudzi Mushaninga. Elias Tapuwa Gambaya as directors of BCC, the Registrar of Companies and Other Business Entities is hereby authorized and empowered to delete the names of Simbarashe Pfumojena, Mufudzi Mushaninga. Elias Tapuwa Gambaya as directors of BBC with effect from the date of this order.

5. The first respondent's counter claim is dismissed.

6. The 3rd, 4th and 5th respondents have been improperly joined to the proceedings. The claimant shall pay the costs being paid on an ordinary scale.

7. The first respondent shall pay the claimants costs of suit including the reimbursement of the costs paid by the claimant to the arbitrator on a scale between legal practitioner and client scale.

It is this award that the applicants seek to be set aside and the second respondent seeks to be registered. The first respondent's stance is that he will abide by the decision of the court and rightly so since he is not an interested party. Normally, he should have been cited last and not as first respondent.

In the application, the applicants narrate a detailed background similar to the one submitted before the arbitrator. The major contentions supporting the setting aside are that the award failed to uphold the privity and sanctity of contract in that it made a finding for the second respondent in circumstances where it had not paid the full purchase price and or in the manner prescribed by the agreement between the parties. Applicants only received USD 170 000 instead of USD 175 000. The only mode of payment was supposed to be in cash using one hundred- dollar bills issued post 2006 and this was not complied with by the second defendant. The resignations and transfers could only be effected after payment of the full purchase price. By making an order compelling transfer, this offended against public policy. The award should not stand as the agreement of sale between the parties was actuated by fraud. It is trite that fraud vitiates a contract. The granting of an award that the Sheriff should act if the applicants failed to do so is not supportable in law. The arbitrator clearly dealt with issues not put before him.

In the notice of opposition, the second respondent strenuously opposes the averments by the applicants. It locates the dispute as a simple one of whether or not the first applicant in *casu* sold their entire shareholding in a company known as BCC to the second respondent. Further that the agreed purchase price of USD 350 000 was paid. Further that the third respondent saw the light and conceded that it had acted unlawfully in refusing to transfer the shares and had since agreed to do so. The letter dated the 9th of July 2024 by Dr Mataruse concedes that the sum of USD 170 000 was paid and received and that the sum of USD 5000 was retained for purposes of meeting statutory obligations. Further that there was no dispute with the second applicant relating to obligations arising. The applicants are now questioning issues of the purchase price and the alleged perpetration of a fraud. The second respondent urges the court to take note of the finding by the first respondent that no issues of breach was ever raised and if it was, the agreement specifically requires the wronged party to notify the other of breach and seek rectification. Despite its contentions, the applicant has not returned the purchase price and continues to hold on to it. The award upholds the principle of sanctity of contract.

In the counter application for the registration of the award, the second respondent avers that it has not been complied with and seeks its registration. The applicants' opposition

is basically a regurgitation of the application for setting aside of the award and the background as put before the arbitrator. The same documentary evidence put before the arbitrator is repeated.

I pause here to deal with the findings of the arbitrator on the issues put in contention by the applicants under the broad heading of disposition. Reference will be made to specific paragraphs or parts thereof.

21. This agreement meets all requirements in m y view of a contract of purchase and sale.

22. The 1st respondent seeks to resile from the contract by alleging fraudulent misrepresentation not by the purchaser but by a third party, Dr Bandason. No conduct in the pleadings is alleged against the disclosed shareholders of the claimant. As I said earlier on, the shareholders of the claimant are disclosed……There are no allegations against these people to the effect that they defrauded or misrepresented the seller in the agreement. It is quite difficult to understand what material facts of the agreement would have been misrepresented. It is common cause that the 1st respondent as the seller was satisfied and happy with the purchase price of USD 175 000. The amount was paid and accepted. The claimant did not misrepresent to the first respondent about its capacity to trade. It merely complied with the agreement by paying.

23. It was not a term of the agreement that the share would be sold to the first respondent on condition that the claimant disclosed its shareholders. At no point before of after the conclusion of the sale agreement did the issue of the directors of the claimant arise. ….There was no requirement in the agreement that the shareholders of the claimant should be acceptable to the seller.

24. In any event, no evidence was placed before me as to any conduct on the part of the claimant's directors as mentioned that may constitute fraud or misrepresentation. Dr Bandason was not a director of the claimant. There is no evidence before me suggesting that Dr Bandason was a director of the claimant or that he was in a partnership with the claimant.

25. The first respondent's claim against the claimant is quite telling. While pleading that the agreement should be void, the claimant does not tender the return of the purchase price. Instead, it counterclaims the difference of what it received as the purchase price USD 170 000 and USD 250 000 being what it considers to be the fair amount of the value of its shares. Its argument is that it it was aware that Dr Bandason was part and parcel of the claimant, it would have sold its shares for USD 250 000. Quite frankly, the reasoning is very flawed. The purchase price that was agreed was never dependent upon the identities of the shareholders in the claimant.

27. With regard to the alternative claim that the amount was not received as cash contrary to the provisions of the agreement, I say at the outset that this is an issue which is not contained in the pleadings but was raised at the eleventh hour in my view as a desperate attempt to try and salvage what clearly was a hopeless defence right from the beginning. Dr Mataruse clarified to the hearing that the amount of USD 170 000.00 was received as a transfer from Dr Bandason's account. There was no evidence placed before me to suggest that payments which were made to Dr Bandason as per the letter from Gill Godlonton & Gerrans dated the 14th of February 2024 were not cash payments. There is a misunderstanding as to the role which Dr Bandason played. On one hand, the Jat Respondent states that Dr Bandason was representing the Claimant whilst on the other hand, the Claimant states that Dr Bandason was the person whom the parties accepted as the negotiator and the person to whom money should have been paid to. In the 1st Respondent's Statement of Claim, they produced a letter written by them on the 1ª of May 2023 presumably before the sale agreement was entered into in which they addressed Dr Bandason. They wrote as follows: -

"Thank you for the update regarding the sale of 50% shareholding for Mirates in Borrowdale Critical Care for the value of USD 175 000.00. The Smallfell Enterprise Board met and deliberated on the proposed offer of USD 175 000.00on 50% shareholders stake for Smallfell in BCC".

I take the fact that the 1st Respondent addressed a letter to Dr Bandason as collaborative evidence to the evidence of the Claimant that Dr Bandason was the one who negotiated the sale. Furthermore, as I have already highlighted in paragraphs 8 and 9 hereof, at all material times, the Claimant appeared to believe that Dr Bandason was the person to whom payment should be made to. This position was understood and appeared to have been accepted by the 2ad Respondent. What is also telling is that the 1st Respondent does not explain how Dr Bandason ended up paying money (USD 170 000.00) to 1st Respondent. How did Dr Bandason get 1st Respondent's bank details if there was no understanding that of Dr Bandason collecting money on behalf of the 1st Respondent? Furthermore, the explanation by 1st Respondent in its letter 24 July 2024 that USD S 000.00 was withheld to meet statutory payments clearly shows that there was communication and understanding between Dr Bandason and 1st Respondent. No complain was ever made about 1st Respondent receiving money that was short. I am satisfied therefore that Dr Bandason received money on behalf of 1st Respondent. There is no evidence suggesting that the money paid to Dr Bandason was not cash.

28. As I indicated earlier on. the 1st Respondent accepted having been paid the sum of

USD 170 000.00. In its letter of the 24th of July, it clearly indicated that it had no issue with the purchase price. It did not raise the issue that it did not receive cash. At the bearing, Dr Mataruse for the 15 Respondent advised the arbitrator that 1st Respondent received payment of USD 170 000.00 from Dr Bandason on the 25% of August 2023 from an NMB account. There was no objection as to the mode of payment. The issue of the payment of cash is being raised for the first time after more than a year and after the 1st Respondent had indicated that it had no problem with the payment that had been received. The sale agreement contains a breach or a default clause being clause 13.1 which states as follows:

"Notwithstanding any extension of time or other concession given by either party to the other, it is hereby agreed by both parties that should either purty fail to observe or perform any of is obligations under this agreement and fail to rectify the same within twenty one working days of a delivery of it of a notice calling on it to remedy the breach then the other party shall be entitled without prejudice to any other legal rights, to cancel this agreement or call for specific performance".

29. It is common cause that the 1 respondent never raised to the Claimant an issue of breach. The agreement specifically requires a party who is to allege a breach to write to the other party so that the other party rectifies the breach. The raising of this alleged breach at the hearing in my view does not fall within the requirements of the agreement. It clearly shows that the Claimant was not in breach of the agreement and if it was the case, the 1st Respondent would have proceeded accordingly.

SPECIFIC PERFORMANCE

30. During the hearing, Advocate Mapuranga indicated that if payment was made as cash, then the 1st Respondent will have no problem but to comply with the agreement. In addition, it is also common cause that the 2nd Respondent has already complied with the agreement. More importantly, it is also common cause that the Claimant is now in charge of the hospital business having paid the purchase and risk and profit having passed to them. In these circumstances. I see no reason why specific performance should be ordered. It has not been suggested by the 1st Respondent that specific performance has become onerous. In fact. it is very appropriate to order specific performance in these circumstances because performance is quite easy.

At the hearing, Advocate *Mapuranga* for the applicants, in addition to the heads of argument filed of record submitted as follows. That the award is contrary to public policy. The award grants specific performance without making a finding that the wronged party had performed its end of the bargain. No payment in the specific mode as set out was done. In *Matukutire vs Makwasha and ors,* SC-92-21, the Supreme Court was emphatic that were an agreement has a specific mode of payment, it should be followed to the letter. Lack of compliance with simple specific acts locates the award into one that is contrary to public policy- *NSAA vs Housing Corporation Zimbabwe (pvt) Ltd and anor,* SC-117-24. The

performance not being *in forma specifica,* the award ought to be set aside. Arbitral awards must not go contrary to the agreed method of payment by the parties. The arbitrator's position is contrary to the law and against public policy.

Per *contra* Advocate *Nyamakura* relied on the leading authority of *ZESA vs Maposa,* 1999(2) ZLR 452. Three points arise from this based on Articles 34 and 35. Applications made are not appeals against arbitration and it is not open to re-argue points that would have failed before the arbitrator. A mistake of law and fact does not entitle petitioner to a setting aside of the award. For a court to set aside an award, it must be satisfied that an award is a palpable inequity going beyond mistake, fault or error. It is apparent that the main application is a disguised appeal. The applicants' own pleadings and papers submitted before the arbitrator reveal that the applicant confirms full payment. The arbitrator made a determination based on the evidence placed before him. In the *Matukutire* decision, no money had been received and the appellant alleged that his wife had no authority to receive payment and it is therefore distinguishable. The arbitrator dealt with the issue of *informa specifica*. This court does not deal with whether he was right or wrong but whether he applied his mind to the issues before him. A court sitting in a similar position will come up with the same decision given the fact that the applicant was paid in full. Additionally, no tender of the purchase price has been made.

Article 34 deals with the setting aside of an arbitral award as follows.

> "ARTICLE 34
> *Application for setting aside as exclusive recourse against arbitral award*
> (1) **Recourse to a court against an arbitral award may be made only by an application for setting aside in accordance with paragraphs (2) and (3) of this article.**
> (2) An arbitral **award** may be set aside by the *High Court* only if—
> or
> [Subparagraph amended by Act 14/2002]
> (*b*) the *High Court* finds, that—
> (i) ……..or
> (ii)**the award** is in conflict with the public policy of *Zimbabwe*.

Faced with the above, the question before the court is whether or not the award is contrary to public policy? I pause here and make reference to *Riogold (pvt) Ltd vs. Falcon Gold Zimbabwe and anor,* SC-7-23, in which the Supreme Court held as follows,

> "According to Article 34 (2) (b) (ii) of the Arbitration Act, the High Court can set aside an arbitral award if it finds that the award is in conflict with the public policy of Zimbabwe. This is the ground upon which the appellant relies on to have the arbitral award set aside.
>
> The *locus classicus* on the subject is the case of *Zimbabwe Electricity Supply authority v Maposa* 1999 (2) ZLR 452 (S) at 465 D-E wherein GUBBAY CJ provided an exposition of the law on the approach to be adopted by a court in determining whether an arbitral award is in conflict with the public policy of Zimbabwe as follows:

> "In my opinion, the approach to be adopted is to construe the public policy defence, as being applicable to either a foreign or domestic award, restrictively in order to preserve and recognise the basic objective of finality in all arbitrations, and to hold such defence applicable only if some fundamental principle of the law or morality or justice is violated."

> Further in the same case at 466 E –G, the Chief Justice stated as follows:
> "An arbitral award will not be contrary to public policy merely because the reasoning or conclusions of the arbitrator are wrong in fact or in law. In such a situation the court would not be justified in setting the award aside. Under Article 34 or 36 the court does not exercise an appeal power and either uphold or set aside or decline to recognise and enforce an award by having regard to what it considers should have been the correct decision. Where, however, the reasoning or conclusion in an award goes beyond mere faultiness or correctness and constitutes a palpable inequity that is so far reaching and outrageous in its defiance of logic or acceptable moral standards that a sensible and fair -minded person would consider that the conception of justice in Zimbabwe would be intolerably hurt by the award, then it would be contrary to public policy to uphold it.

In my view, the arbitrator thoroughly dealt with all the issues before him as is apparent from the excerpts from the award. He exercised his mind to all the issues before him as supported by documentary evidence. The legal issues were examined and specific findings made. The submissions by the applicants' counsel would be more relevant to an appeal. It is trite that this court is not sitting as an appeals court. I agree with the submissions by Advocate *Nyamakura* that once parties submit a matter to arbitration, they lose their right to appeal against the award. I do not see any part of the award being said to be a palpable inequity or how it can be said to defy logic. The applicant also avers that the arbitrator went overboard by including enforcement mechanisms in the award. In my view, there is nothing wrong in the arbitrator giving an award that is not only binding but enforceable. I do not perceive of any prejudice being suffered by the applicants in the enforcement mechanisms that have been included in the award.

The applicant seems to be "unhappy" with the overall award. As I have previously stated in *ZIMRA vs. Mike Harris Toyota Limited and anor,* HH-614-23,

> "In my view and as amplified by Mr. *Zhuwarara,* an arbitrator has a right to be 'wrong'. – *Townsend Enterprises vs. Sinohydro Zimbabwe (pvt) Ltd,* HH-143-23. The contentions by the applicant who freely entered into an arbitration contract and put specific issues before the second respondent , in my view amount to asking this court to review the award. That is not our duty. As cited above, the ground of public policy is very limited. A litigant cannot found a claim on its general unhappiness over an award and claim that it is in conflict with public policy"

An arbitrator stands at a vantage point because they have the benefit of going through the claim, the defence, the rebuttal and oral submissions. In answer to the question posed to the courts in the *Alliance* matter, in light of all the submissions and evidence adduced before the arbitrator, is it fathomable that I would have come up with such a conclusion. My simple answer is 'yes'. The inescapable conclusion is that the application for the setting aside of the arbitral award has no merit.

As indicated already, the second respondent seeks a registration of the award. The applicant's counsel confirmed that should the court dismiss the application for setting

aside the award, it should be registered. In terms of Article 35 (1) of the Arbitration Act an arbitral award becomes binding upon being granted and it becomes enforceable upon being registered by the High Court. The provision reads;

> "An arbitral award, irrespective of the country in which it was made, shall be recognized as binding and, upon application in writing to the High Court, shall be enforced subject to the provisions of this article and of article 36."

As already observed, the opposition to the registration of the award is a repetition of the application for its setting aside. None of the factors militating against the registration of the award as per Article 36 have been pleaded. Accordingly, there is no impediment to the registration of the award as sought by the second respondent.

Although costs have been sought on a higher scale, given the bruising battle that the parties have fought for two years and counting, it is apt that an order of costs be awarded on the ordinary scale.

DISPOSITION

1. The application for the setting aside of the arbitral award of the first respondent Innocent Chagonda dated the 13th of December 2024 be and is hereby dismissed.
2. The application for the registration of the arbitral award of the first respondent Innocent Chagonda dated the 13th of December 2024 be and is hereby granted.
3. The arbitral award of the first respondent Innocent Chagonda dated the 13th of December 2024 be and is hereby registered as an order of this honourable court.
4. The applicants shall pay costs for the main and counter applications on the ordinary scale jointly and severally, each paying the other to be absolved.

RUBAYA AND CHATAMBUDZA, legal practitioners for the applicants
GILL, GODLONTON AND GERRANS, legal practitioners for the second respondent